

and a fair trial. They are covered by Articles 3–21 of the UDHR and prohibit state interference in the freedoms of an individual.

Second-generation rights largely tend to deal with economic and social rights, such as the right to food, housing, and healthcare. They are covered by Articles 22–28 of the UDHR. These rights impose upon governments a duty to promote them—but whether they are enacted depends on the availability of resources.

Third-generation human rights go beyond basic civil and social rights and include the right to a healthy environment and the right to participate in cultural heritage. They are not yet included in the UDHR. Neither, explicitly, are the right not to fight and the abolition of the death penalty.

Some observers criticize the distinction between first- and second-generation rights as academic: all rights require state commitment (whether funding criminal courts or health clinics) and should be seen as universal, interdependent, and indivisible.

Bill of Human Rights

When the UN Commission on Human Rights came to turn the UDHR into international law, some

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We cannot let cultural relativism become the last refuge of repression.

Warren Christopher
US secretary of state (1993–1997)

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delegates in the Commission, led by the representative from the United States, supported the creation of two separate human rights treaties in 1966: the International Covenant on Civil and Political Rights (ICCPR), which had been ratified by 173 countries as of 2020; and the International Covenant on Economic, Social, and Cultural Rights (ICESCR), which had 170 state parties by 2020.

The UDHR had treated these rights as equally important, but there were some major differences between the two. Article 2 of the ICCPR requires signatories to “take the necessary steps” in order to “adopt such laws or other measures as may be necessary to give effect to the rights” protected in the treaty and to ensure that remedies are available for violations of those rights.

In contrast, the ICESCR only requires countries to use its “available resources, with a view to achieving progressively the full realization of the rights” contained in the treaty. This is generally considered to be a weaker legal requirement, and some observers see it as evidence of economic

American medical students protest against the repeal of the Affordable Care Act (2010), which made health insurance more affordable, insisting that healthcare is a human right.

and social rights not being treated seriously enough in international human rights law.

Relativism and rights

The UDHR was drafted at a time when large parts of Africa and Asia were still under colonial rule. The UDHR drafting committee was careful to recognize the different cultural and political traditions of rights. Yet, in 1947, the American Anthropological Association warned about the UDHR’s alleged “intolerance” of cultural differences and questioned whether it was even possible to come up with a truly universal declaration of human rights.

Saudi Arabia was one of the eight nations that abstained in the UDHR vote in 1948. It was concerned about the references to religious freedom in the Declaration, which it felt was incompatible with Saudi society because of its strict adherence to Islam and Sharia law.